DINAH GUKUTA
versus
CHARITY BOKA

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 25 June 2025 and 10 February 2026

Court Application For Rescission Of Default Judgment

D C Kufaruwenga, for the applicant
S Muzondiwa, for the first respondent

TAKUVA J: This is an application for the rescission of a default judgment granted by the Honourable Zhou J on 24 January 2025 under Case No. HCH 1556/24. The order suspended the sale in execution of an immovable property upon certain conditions.

The Applicant seeks rescission in terms of Rule 27 of the High Court Rules, 2021, contending that the order was granted in her absence without proper service of the chamber application and without notification of the hearing date.

BACKGROUND FACTS

The Applicant is the judgment creditor in proceedings relating to the sale in execution of an immovable property. The Respondent had instituted an application under Case No. HCH 1556/24 for the suspension and setting aside of that sale. The application was heard and granted by default on 24 January 2025.

The Applicant avers that neither she nor her legal practitioners were ever served with the Respondent's application, nor were they notified of the hearing date as required by Rule 71(14), which places an obligation upon the Registrar to serve the judgment creditor and inform them of the set down. It is further alleged that the Applicant was not linked to the matter on the IECMS platform at the relevant time, and only became aware of the existence of the order on 7 February 2025, upon receipt of correspondence from the Respondent's legal practitioners.

Consequently, the Applicant maintains that her failure to attend court on 24 January 2025 cannot be regarded as wilful default, as she had no knowledge of the proceedings or the hearing date.

In addition to the issue of notice, the Applicant challenges the *bona fides* of the Respondent's application to set aside the sale. The Applicant alleges that the Respondent obtained the order on the basis of false representations, particularly the assertion that the property was occupied by the Respondent and her family. The Applicant contends that this claim is untrue.

It is alleged that the Respondent and her husband, acting as directors of Charible Enterprises (Private) Limited, sold the immovable property to third parties, namely Immaculate Chidede, Sofiya Chidede and Margaret Chidede, in July 2020. Proof of the sale agreement and payment of the purchase price has been placed before the Court.

Furthermore, the purchasers have instituted an interpleader application under Case No. HCH 1536/24, seeking a declaration that the property should not be sold in execution as they are the lawful buyers and occupiers. That interpleader matter remains pending before the Honourable Court.

The Applicant therefore contends that the Respondent's application in Case No. HCH 1556/24 was tainted by material non-disclosure and misrepresentation, and that the order obtained through default and alleged chicanery cannot be permitted to stand. The Applicant seeks rescission of the judgment together with punitive costs against the Respondent. The application is opposed.

PRELIMINARY OBJECTION: THE DIRTY HANDS DOCTRINE

The Respondent raised a point *in limine*, submitting that the Applicant is barred from approaching the Court on the basis of the dirty hands doctrine. It is argued that there are two extant court orders permitting the Respondent to settle the judgment debt in local currency at the ruling interbank rate, and that the Applicant has refused to accept such payment. On that basis, the Respondent contends that the Applicant has no right of audience.

The dirty hands principle is well recognised in our law. In *Richclover (Pvt) Ltd* v *Rambayi & Anor* HH 269/24, the Court reiterated that litigants who approach the courts while in deliberate disregard of court orders risk being denied relief in order to preserve the integrity of judicial processes. The Constitutional Court similarly confirmed in *Sadiqi* v

Muteswa CCZ 14/21 that the doctrine serves as an essential mechanism to uphold the authority and dignity of the courts.

However, the doctrine is not a rigid bar to litigation, nor is it to be applied indiscriminately. Its invocation requires clear proof of wilful disobedience of a court order amounting to contempt.

In the present matter, the Applicant approaches the Court not to avoid compliance with any extant order, but to challenge the propriety of a judgment granted in her absence. Rescission proceedings concern the fundamental requirement that a party must be afforded an opportunity to be heard before adverse relief is granted.

The Respondent's allegations relate to disputes surrounding the mode of settlement of the judgment debt. Those issues, even if relevant elsewhere, cannot operate as an automatic shield against scrutiny of an order allegedly obtained without service and without compliance with mandatory procedural safeguards.

In the circumstances, the preliminary objection is misplaced and cannot be sustained. The point *in limine* is accordingly dismissed.

ANALISIS

Rule 27 provides that a party against whom judgment has been granted in default may apply for rescission within one month of acquiring knowledge of such judgment, and the Court may set aside the judgment upon good and sufficient cause being shown.

The requirements constituting "good and sufficient cause" are settled. *Songore* v *Olivine Industries (Pvt) Ltd* 1988 (2) ZLR 210 (S), the Supreme Court set out well-known considerations relevant to rescission:

> "The applicant must show good and sufficient cause, which in essence means the applicant must provide a reasonable explanation for his default, must show the application is made *bona fide* and not merely to delay the respondent's claim, and must demonstrate a bona fide defence which prima facie carries some prospect of success."

Thus, one is required to basically satisfy these requirements put simply as;

1. The applicant's default must not be wilful;
2. The applicant must show a *bona fide* defence;
3. The applicant must demonstrate prospects of success on the merits.

This position was reaffirmed in *Mordecai Deweras Farm (Pvt) Ltd* v *Zimbabwe Banking Corporation* 1998 (1) ZLR 368 (H). I proceed to consider these requirements.

WHETHER THE APPLICANT WAS IN WILFUL DEFAULT

The Respondent's chamber application in Case No. HCH 1556/24 was brought in terms of Rule 71(15). Rule 71(16) imposes clear obligations upon the Registrar once such an application is filed. The Registrar is required, without delay, to:

(a) Notify the Sheriff;
(b) serve a copy of the application on the execution creditor;
(c) set the matter down and notify both parties of the hearing date.

The Applicant's case is that none of these procedural safeguards were complied with insofar as service upon her is concerned.

The Respondent relies on a letter from the Registrar dated 10 May 2024, suggesting that the Applicant had been notified of the chamber application.

However, the Rules are explicit on what constitutes proof of service. Rule 15(22) provides that where service is effected by a person other than the Sheriff or a legal practitioner, proof must be by affidavit. No affidavit of service by the Registrar has been produced. Furthermore, no evidence has been placed before the Court demonstrating that the Applicant was ever notified of the set down date as required by Rule 71(16)(c). The Respondent sought to rely on presumptions of regularity, contending that the Registrar, as an officer of the Court, must be taken to have acted properly.

While the Court accepts that official acts ordinarily carry a presumption of regularity, such presumption cannot supplant peremptory procedural requirements. Where the Rules demand formal proof of service, the absence thereof is fatal.

In the absence of lawful proof that the Applicant was served or notified, the Court cannot find that her non-attendance on 24 January 2025 was deliberate or wilful. The Applicant was not in wilful default.

BONA FIDE DEFENCE AND PROSPECTS OF SUCCESS

The Applicant must further show that she has a bona fide defence carrying reasonable prospects of success. The Respondent's application to suspend the sale was premised on the

allegation that she and her relatives occupy the immovable property and would suffer undue hardship if the property is sold.

The Applicant disputes this factual foundation. She alleges that the Respondent sold the property in July 2020 to the Chidedes; the Respondent received the purchase price in the sum of US$60,000; the Chidedes, not the Respondent, are in occupation and an interpleader application under Case No. HCH 1536/24 remains pending. These allegations, if established, directly undermine the Respondent's claim of hardship and occupation, which are central considerations under Rule 71(18).

It is difficult to conceive how undue hardship may arise from the execution of a property which the Respondent allegedly disposed of years earlier and from which she benefitted financially. The Court is satisfied that the Applicant has raised a genuine defence which is neither frivolous nor vexatious, and which carries reasonable prospects of success in the main matter.

DISPOSITION

The Applicant has demonstrated good and sufficient cause for rescission. She was not in wilful default, she has advanced a bona fide defence, and she has prospects of success. The order granted in her absence cannot, in the circumstances, be permitted to stand.

ORDER

Accordingly, it is ordered that:

1. The order obtained by Respondent in Case No. 1556/24 on 24 January 2025 before Honourable Justice Zhou be and is hereby set aside.
2. The respondent shall pay costs on an ordinary scale.

TAKUVA J:…….

Kufaruwenga Kajevu and Zihanzu Legal Practitioners, Applicant's legal practitioners
Samukange Hungwe Attorneys, respondent's legal practitioners